Vivek Bhalla vs State Of Nct Of Delhi on 9 September, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2702/2022 & CRL.M.A. 18165/2022
VIVEK BHALLA .....
Through: Mr. Sumit R. Sharma, Ad

versus

STATE OF NCT OF DELHI .....
Through: Mr. Aashneet Singh, APP

CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 09.09.2022 This is an application filed seeking grant of anticipatory bail in the FIR 333/2022 dated 09.06.2022 registered at PS Mohan Garden, under Section 380 IPC.

It is stated by Mr. Sharma, learned counsel for the applicant that the applicant is the owner of the property in question. Applicant s father during his lifetime, had asked Mr. Pishori Lal, the husband of the complainant, to take care of the property. Mr. Pishori Lal died in the year 2009, and thereafter, his wife Smt. Santosh and her son, Mr. Anil, and the Daughter-in- law, Ms. Anita started living in the property.

Hence, the occupation of the complainant was permissive in nature through her husband and that of a caretaker. The actual possession of the property was always with the applicant.

It is stated that the complainant and her family members prepared forged and fabricated documents, and thereafter, have created third party rights.

Mr. Sharma, learned counsel states that there is a total fraud played on the applicant, as it is applicant who has always been the owner and in possession of the property in question.

The right of the complainant to use the property was always through her husband i.e. late Mr. Pishori Lal, who was just a caretaker. It is only when the complainant was ousted from the plot, she has filed the FIR.

As per the FIR, the allegations are not against the applicant but against the Police Officer.

From the averments in the petition, it seems prima facie that the applicant is the owner of the property. The complainant on being dispossessed, has registered the FIR.

The complainant has created the third party rights, wherein there is no chronology of how the complainant became the owner of the property in question.

Issue notice. Mr. Singh, learned APP accepts notice, seeks and is granted 4 weeks to file a status report.

In the present case, the applicant has already joined investigation and has appeared before the I.O. concerned as and when directed.

The applicant prima facie seems to be the owner of the property and the FIR is predicated on the fact that thewife of Mr. Pishori Lal, namely, the complainant has been ousted from the plot in question.

For the aforesaid reasons, it is directed that till the next date of hearing, the applicant shall not be arrested in the FIR 333/2022 dated 09.06.2022 registered at PS Mohan Nagar under Section 380/ 450/ 457/ 436/ 395/ 506/ 120B IPC.

List on 14.11.2022.

JASMEET SINGH, J SEPTEMBER 9, 2022 (MS) Click here to check corrigendum, if any